

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1211
(Representatives Monson, Beltz, Hagert, Nelson, Vigasaa, Weisz)
(Senators Klein, Lemm, Myrdal, Wanzek)

AN ACT to amend and reenact sections 49-02-26, 49-02-29, and 49-02-31 of the North Dakota Century Code, relating to renewable electricity and recycled energy credits; and to repeal section 49-02-30 of the North Dakota Century Code, relating to energy from hydroelectric facilities.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 49-02-26 of the North Dakota Century Code is amended and reenacted as follows:

49-02-26. Qualifying for renewable electricity and recycled energy credits –~~Exception for certain hydroelectric facilities.~~

~~Except as otherwise provided in this section, for~~For purposes of qualifying for renewable electricity and recycled energy credits, electricity must be generated from a source identified in section 49-02-25. ~~For electricity generated from hydroelectric facilities, the hydroelectric facility must have an inservice date of January 1, 2007, or later, or be new hydroelectric generation obtained from repowering or efficiency improvements to hydroelectric facilities existing on August 1, 2007.~~

SECTION 2. AMENDMENT. Section 49-02-29 of the North Dakota Century Code is amended and reenacted as follows:

49-02-29. Qualifying for renewable electricity and recycled energy objective.

For purposes of qualifying for the renewable electricity and recycled energy objective contained in section 49-02-28, electricity, ~~except for electricity generated from a hydroelectric facility with an inservice date before January 1, 2007, and electricity that is not obtained from repowering or efficiency improvements to a hydropower facility existing on August 1, 2007, regardless of the source's inservice date,~~ qualifies for meeting the statewide objective provided that the source meets the requirements of the North Dakota public service commission's rules for tracking, recording, and verifying renewable energy certificates.

SECTION 3. AMENDMENT. Section 49-02-31 of the North Dakota Century Code is amended and reenacted as follows:

49-02-31. Purchase and retirement of renewable energy and recycled energy certificates to meet the objective.

A portion or all of the renewable energy and recycled energy objective may be met by the purchase and retirement of renewable energy and recycled energy certificates representing credits from qualified sources and facilities as ~~defined~~described in ~~sections~~section 49-02-26 and ~~49-02-30~~. Renewable energy and recycled energy certificates do not need to be acquired from an in-state facility.

SECTION 4. REPEAL. Section 49-02-30 of the North Dakota Century Code is repealed.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1211.

House Vote: Yeas 92 Nays 1 Absent 1

Senate Vote: Yeas 47 Nays 0 Absent 0

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State